

Judgment Sheet

**LAHORE HIGH COURT,
BAHAWALPUR BENCH BAHAWALPUR
JUDICIAL DEPARTMENT**

W.P. No.6337 of 2024

Muhammad Talha Ammar Khan & 18 others

Vs.

Board of Governors, Sadiq Public School Bahawalpur and others.

JUDGMENT

Date of Hearing	01.07.2025
Petitioners by	M/s Nadeem Iqbal Chaudhary, Gulzar Ahmad Durrani, Advocates
Respondents No.1,3, 7 by	Mr. Nawazish Ali Pirzada, Advocate- Legal-Advisor for respondents-SPS
Respondents No.2,3 & 6 by	Sardar Muhammad Shahzad Khan Dhukkur, Assistant Attorney General and Anwaar Hussain, Rai Mazhar Hussain Kharal, Assistant Advocates General.

MALIK MUHAMMAD AWAIS KHALID, J., This single judgment will dispose of instant petition (W.P. No.6337 of 2024) and connected petitions (W.P. No.9776 of 2024 and W.P. No.6357 of 2024) as common question of law and facts is involved therein.

2. The petitioners in W.P. No.6337 and W.P. No.6357 of 2024 have filed petitions with the following prayer:-

*“Foregoing in view it is hereby requested that by accepting this petition the revised fee schedule for the 2nd term 2024 imposed by the respondents alongwith unjustified charges under the Head of Optional Summer School, Book and Stationary expenditure as well as Class Change Adjustment bills (Annexures A to A-25) may be declared arbitrary, unilateral and without lawful authority.
Further they may be directed to determine the school fees and other allied charges in the light of prevalent financial economical indicators of the*

country as well as financial, economical indicators of the country as well as financial raise in the parent's income."

The petitioners in W.P. No.9776 of 2024 have filed petition with the following prayer:-

"Foregoing in view it is hereby requested that by accepting this petition the Class Change Adjustment Bills (Annexures-B) through notice dated 27.11.2024 may be declared arbitrary, unilateral and without lawful authority.

Further they may be directed to determine the school fees and other allied charges in the light of prevalent financial economical indicators of the country as well as financial, economical indicators of the country as well as financial raise in the parent's income."

3. Brief facts submitted by the petitioners are that Management of Sadiq Public School, Bahawalpur, ('SPS') as after receiving the tuition fee and other allied expenditures from the petitioners (students of school) for their 1st term (May 2024 to August 2024) revised fee schedule for future term arbitrarily and through demand notices required more than 50 percent excess fees and allied facility expenses for 2nd terms (September to December 2024) despite the fact that students do not avail such options and facilities and also enhanced Class Change Adjustment Bills vide notice dated 27.11.2024. It is sole prerogative of the Board of Governors to determine and fix the fee scale and in the impugned demands no reference of the approval by the Board of Governors has been shown to justify the validity of revised schedule as well as Class Change Adjustment Bills and such actions on behalf of the respondents are unjust, irrational

without any lawful justification and result of discretion.

Hence, this petition.

4. Learned counsel for the petitioners submits that increase in the tuition fee and other allied expenditures during the academic year is without justification as no proper notice has been referred at the time of admission in this regard; fee was settled on yearly basis and he highlighted some financial issues fee; relies on section 4 of the Punjab Educational Institutions (Reconstitution) Act, 2021, (**'the Act'**) whereby Board of Governors has been appointed by Government of the Punjab through notification issued by the Punjab School Education Department working under Punjab Rules of Business 2011 being attached department; further submits that SPS is special institution under the 1st Schedule Rules of Business 2011 having other financial sources including Government funds in millions, several other fixed deposits of the Institution fetching heavy profits alongwith donations from public sector; relies on the notification showing continuous grant disbursed by the Government of the Punjab in favour of the SPS; Board of Governors is the ultimate authority to decide all the matter which has been constituted by the Government of the Punjab; when the Government of the Punjab has formulated Board of Governors then they are bound to follow the Act; for the increase of tuition and allied expenditures, it is mandatory to issue prior notice of reasonable 16 days as per the Punjab Private Educational (Promotion and Regulation) Rules, 1984 (now repealed); there

is no mechanism provided that how the Board will act to deal with fee issues and in this regard section 16 of the Act is relevant; impugned action for increase of fee is violation of section 5 of the Act; while relying on reply of respondent No.1, submits that Management Committee has no power to formulate fee under Section 9 of the Act; relies on the minutes of Financial Committee which disclosed that they had not applied independent mind, and also highlighted mismanagement and misuse of the authority by Bursar. Learned counsel for the petitioner submits that SPS was being regulated through 1997 Statute, Rules & Regulations prior to the Punjab Educational Institutions (Reconstitution) Act, 2021 which has promulgated under the whole law but having section 16 prohibited clause. Relies on the Judgements reported as Muhammad Imran and others Vs. Province of Sindh through Chief Secretary and others (2019 SCMR 1132), Private School Association Islamabad through Secretary Vs. Federation of Pakistan, through Secretary Ministry of Federal Education and Professional Training, Pak Secretariat, Islamabad (2020 CLC 1658), Aitcheson College Lahore through Principal Vs. Muhammad Zubair and another (PLD 2002 Supreme Court 326).

5. Learned counsel for the petitioner in W.P. No.9776 of 24 (Mr. Gulzar Ahmad Durrani, Advocate) submits that although the Board has discretion to increase the fee but it is nowhere mentioned that what will be the quantum of such increase and the discretion cannot be exercised unfairly; that

there is no definition of 'time to time' in the regulations hence when there is no definition clause of 'time to time' there should be a reasonable time.

6. Learned counsel for the respondent-SPS argued that as the matter relates to enhancement of fee and other educational expenditures of the students which is sole prerogative of the Board of Governors; the Board has decided the impugned increase of fee, therefore, instant petition is not maintainable; this fact was in the knowledge of the petitioners as according to the Prospectus Board can enhance the fee; petitioners cannot take different stances under law of estoppel. He relies on preamble of the Act and refers to section 14 thereof; that actual order of the Board of Governors has never been challenged and this is not the part of the prayer made in these petitions. Submitted that Board of Governors has the jurisdiction through its meeting held on 28.6.2024 to enhance the fee. Relevant decision is reproduced as under:-

Decisions:

1. *Annual increase in salaries by 25% from BS-01 to BS-16 and 20% for BS-17 and above (as announced by Govt. of Punjab)*
2. *Annual increase in pensions by 15% (as announced by Govt. of Punjab)*
3. *The tuition fee would be increased above the existing fee (as of on that day) in the following order: Rs.5880/- in Jr. School, Rs.6000/- in Prep School, Rs.6665/- in Sr. School, Rs.7250/- in O Level, Rs.11985/- for A Levels.*
4. *Increase of 45% in all funds.*
5. *Increase of Rs.13785/- to Rs.17920/- in Boarding fee.*
6. *The School Development fund (charged at the time of admission) and Admission fee would be increased by 55%.*
7. *Transport fund to be charged at a uniform rate of Rs.500/- per month.*

Under section 13 of the Act, the Board of Governors may frame regulations to give effect the provisions of this Act whereas in application Form the student agrees:-

Application Form:

Clause-3 I agree

- i) *to pay the fees in advance timely, as laid down in the school rules, and to give one term's notice of withdrawal or to pay one term's fee in lieu thereof.*
- ii) *to pay the scale of fees fixed from time to time by the Competent Authority/Board of Governors which shall not be challenged in any Court of Law and Forum.*

While relying on comparative analysis learned counsel submits that fee and other expenditures of SPS are still less; at present the enhanced portion of tuition fee and other charges has not been paid by the petitioners so-far. Relies on the case of Hafsa Habib Qureshi and others Vs. Amir Hamza and others (PLD 2024 Supreme Court 780), Pakistan Engineering Council through its Chairman and others Vs. Muhammad Sadiq and others (2024 SCMR 956) and Vice-Chancellor Agriculture Univesity, Peshawar and others Vs. Muhammad Shafiq and othrers (2024 SCMR 527).

7. Arguments heard. Record perused.

8. The SPS is a special institution under Punjab rules of Business 1997 and founded by Sir Sadiq Muhammad Khan Abbasi-V in year 1953 and allocated 450 acres of land in order to impart high quality education to new generations of the Bahawalpur area and other regions. Earlier administration was being run by Sadiq Public School Society and thereafter in November, 11 1961, Government of Pakistan by dissolving

the said Society placed management and control of the SPS under the Board of Governors. Now, in this regard Section 2(a)(b)(f) of the Punjab Educational Institutions (Reconstitution) Act, 2021, are relevant which is reproduced respectively as under:-

“Board” means the Board of Governors of an Institution;

“Government” means Government of the Punjab.

“President” means Governor of the Punjab

Section 4 of the Act deals with the functions of the Board which is reproduced as under:-

4. Board.—(1) *The management and control of an Institution shall vest in the Board which shall consist of the President and the following members:*

- (a) *Minister in charge of the relevant Department;*
- (b) *Secretary to Government of the relevant Department or his nominee not below the rank of an Additional Secretary;*
- (c) *General Officer Commanding of the corps of the armed forces as may be appointed by the President;*
- (d) *two distinguished academicians to be appointed by the President;*
- (e) *fifteen eminent alumni of the Institution from academia, industry, judiciary, civil service, armed forces, sports, and former and sitting members of legislative bodies to be appointed by the President;*
- (f) *Principal of the Institution; and*
- (g) *any other member as may be appointed by the President.*

The Government of the Punjab, School Education Department issued notification dated 8th March, 2024 whereby the Governor of Punjab/President Board of Governors appointed members of SPS and most of the finances are funded by Government of the Punjab. While relying on the case law reported as ‘Aithison College Lahore Vs. Muhammad Zubair and another (PLD 2002 Supreme Court 326), instant writ petition is maintainable.

9. The controversy in these three matters is that after 1st term (May 2024 to August 2024) revised enhanced fee schedule for future term i.e. 2nd terms (September to December 2024) is unlawful and arbitrary. The conflict started on the increasing of tuition fee and other allied educational expenditures during the academic year i.e. for the 2nd term. Learned counsel representing SPS took the stance that there is specific clause in the Admission Form duly signed by the petitioners to the effect that administration of the SPS can increase fee from time to time.

The relevant portion is reproduced as under:

IX FEES

a The scale of fee shall be fixed from time to time by the Board.

It has been observed by the Court that there is no specific regulation to explain the phrase ‘time to time’ and ‘quantum’ of such increase. The fees are meant to be fixed in the beginning of academic year. There is no Rule and Regulations which deal with ‘time to time’ and ‘quantum’ to increase the fee fixation during the academic year and the same does not describe quantum for such increase of the fee and other allied educational expenditures for the students during the academic sessions. The Act was promulgated to improve governance and management of educational institutions by providing them academic financial administration so that quality of education be enhanced in the Province. Board of Governors is established having the

powers u/s 3 of the Act to deal with diverse problems through management of powers possessed by the Board which needs to be formulated a structural mechanism.

10. The parents and their children come to an institution with the intention that children will complete their studies by spending over there number of years but it will neither convenient nor good for the students to change school every year so once a student get admission he is committed to study for several year in that particular school. Parents and students approached this Court through these petitions in which they have not challenged tuition fee and other expenditure charged at the time of taking admission but they have agitated the increase during the middle of the academic year. The precise structure and power of the Board of Governors possess degree of independence and its position is useful source of patronage and to deal with the situation more flexibly according to particular needs. This periodical increase in the fee etc. in a retrospective manner needs to be revisited by the Board as according to the petitioners erroneous burden in the middle academic year over parents. This Court has keep in mind that the school is bound to maintain its high quality education for preparing the students for success on both national and international level according to modern challenges, and further being in the top-tier boarding schools in South Asia, and also internationally with schools like Eton College (UK) or Phillips Exeter Academy (USA) in terms of

boarding structure and boarding. The rights guaranteed under Articles 4, 9, 10-A, 25 & 25-A of our Constitution are heroic and vibrant blend of the cardinal principle of natural justice, procedural fairness and procedural propriety of the English Jurisprudence and procedural due process of the American Jurisprudence. The Constitution has boldly recognized these rights to be immutable rights of every citizen. In this regard, reliance is placed on Naubahar Ali v. Vice-Chancellor and others [2010 PLC (C.S.) 783] and Muhammad Umar v. D.G. Excise and Taxation and others [2011 PLC (C.S.) 384]. The SPS being prestigious, prominent and historical institution educating millions of people of the region as well as country since decades, it is very important that unnecessary conflict between the students and administration should not be in field which adversely affect the educational atmosphere, career of the students and standard of quality education. Supportive environment of an institution is too much essential for quality education which is compulsory for developing skills, critical thinking and creativity too amongst the students and also will prepare them for life and not for job. Institutions should prioritize creating a positive, inclusive environment that promotes students well-being and successful. Ideal environment would help the students grow into well-rounded individuals, boost learning and engagement and create a foster sense of community. It is very important to save the energies of teachers and students for educational purposes so that they must focus on the high standard of education by

fulfilling their respective reasonability and duties. Thus, in order to resolve the controversy in hand between the students and administration of the SPS and to avoid such like conflict in future it needs logical solution/ settlement keeping in view all the prevailing circumstances. As a sequel of above discussion and while relying on the cases of Pakistan Engineering Council through its Chairman and others Vs. Muhammad Sadiq and others (2024 SCMR 956), Vice-Chancellor Agriculture University, Peshawar and others (2024 SCMR 527) Hafsa Habib Qureshi Vs. Amir Hamza and others (PLD 2024 780), Muhammad Imran and others Vs. Province of Sindh through Chief Secretary and others (2019 SCMR 1132), Private School Association Islamabad through Secretary Vs. Federation of Pakistan, through Secretary Ministry of Federal Education and Professional Training, Pak Secretariat, Islamabad (2020 CLC 1658), Aitcheson College Lahore through Principal Vs. Muhammad Zubair and another (PLD 2002 Supreme Court 326), Board of Directors of the SPS is directed:

- i) to devise structural mechanism for the fixation of fee in future to cater all such situations according to needs and requirements
- ii) to re-examine the earlier decision after hearing the petitioners or their nominees regarding the impugned fee enhancement and pass well-reasoned order under law keeping in view the observations supra within 60 days. Till then, the

*interim relief/arrangement already executed
between the parties may continue.*

This writ petition is disposed of in above terms.

(Malik Muhammad Awais Khalid)
JUDGE

Approved for reporting

Judge

*Naeem**